



2025:AHC:196120-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 38386 of 2025

M/S Skmr Healthcare

.....Petitioner(s)

Versus

Purvanchal Vidhut Vitrana Nigam Ltd. And
Another

.....Respondent(s)

Counsel for Petitioner(s)	: Arun Mishra, Vijay Pratap Singh
Counsel for Respondent(s)	: Narendra Kumar Tiwari

Court No. - 3

**HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE VIVEK SARAN, J.**

1. Heard Sri Arun Mishra, learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondent and perused the record.
2. Primarily challenge has been raised to the order dated 02.07.2025 passed by the Executive Engineer dealing with the petitioner's claim referable to Clause 4.29 of the UP Electricity Supply Code, 2005 (hereinafter referred to as 'the Code').
3. The petitioner is aggrieved by the fact that instead of returning 'the service line' paid for it by the petitioner, and instead of giving due interest on the security amounts deposited by the petitioner during currency of the electricity connection availed by it, the respondent- Corporation is treating the service line to be their property and are demanding fixed charges from the petitioner, well after permanent disconnection granted w.e.f. 23.12.2024.
4. At present, the impugned order appears to have been drafted, mechanically. It does not contain any reasons why the respondent- Corporation has chosen to reject the petitioner's claim for return of service line paid for by the petitioner. Also, the grievance against the payment of fixed charges is still pending consideration.
5. While learned counsel for the respondent- Corporation initially prayed

for time for counter affidavit, on query if the impugned order discloses any substantial reasoning as may be tested after exchange of affidavits, he fairly states that the impugned order may not satisfy the test of a reasoned order.

6. Accordingly, no useful purpose would be served in keeping the writ petition pending or calling for the counter affidavit, at this stage.

7. The writ petition is ***disposed of*** with direction, subject to the petitioner filing comprehensive representation before respondent No.2 within a period of two weeks from today, annexing thereto copies of all documents on which the petitioner may seek to rely both for the purposes of claiming return of service line and also cessation of liability to pay fixed charges, that representation may be dealt with and decided on its own merits by the said respondent after giving brief opportunity of hearing to the petitioner within a further period of two weeks, without being influenced by any observation made in this order.

8. Subject to first compliance made by the petitioner, appropriate reasoned order may be passed dealing with objections and claim of the petitioner within a period of two months from today.

9. It is further made clear that if any security amount has been furnished by the petitioner, on which he is entitled to interest, and if any amount is being claimed by the respondent- Corporation with or without interest, clear tabular chart of such deposits and liabilities may be disclosed in the order to be passed in compliance of this order.

(Vivek Saran,J.) (Saumitra Dayal Singh,J.)

November 7, 2025

Prachi